Fundamental Rights(Part-1)

Table of Contents

- Six Fundamental Rights
- Features
- Related Cases
- Articles (12 - 24)

Introduction

✓ **Part III of the Constitution → Articles 12 to 35**

✓ Inspired by the **U.S. Constitution**

✓ Called the **"Magna Carta of India"**

✓ Known as the **"Conscience of the Constitution"**

✓ **Guarantee basic freedoms and protection** to citizens.

✓ Reflect **political democracy** – *"A government of laws and not of men"*

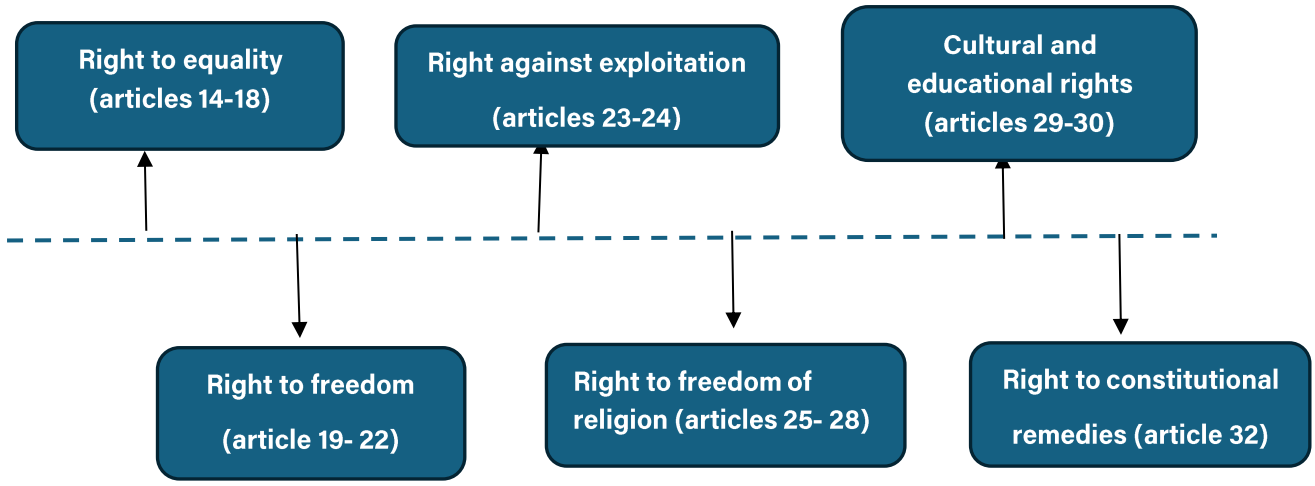
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Features of Fundamental Rights (FRs):

1) **Availability**: Some FRs (e.g., Articles 15, 16, 19, 29 & 30) are only for citizens; others apply to all, including foreigners.
2) **Against Whom**: Mainly enforceable against the State; some also apply to private individuals (e.g., Article 17).
3) **Nature**: Both negative (restrict State actions) and positive (grant freedoms) in character.
4) **Amendability**: Can be amended but not violate the **basic structure** of the Constitution.
5) **Justiciability**: Citizens can directly approach the **Supreme Court** under Article 32.
6) **Reasonable Restrictions**: FRs are subject to lawful restrictions and special provisions (Articles 31A–35).
7) **Suspension**: FRs can be suspended during Emergency, but **Articles 20 & 21** remain protected.

Originally, the Constitution provided for 7 types of Fundamental Rights (Now 6 FR's). The property right was deleted from the list of Fundamental Rights by the 44th Amendment Act, 1978. It is made a legal right under Article 300-A in Part XII of the Constitution.

- **Article 12** defines 'State' to include government bodies, legislatures, local authorities, and agencies like LIC or ONGC.
- Even **private entities** acting as instruments of the State fall under this

- **Article 13** declares that laws violating Fundamental Rights are **void**.
- Courts (Art. 32 & 226) can strike down such laws; **Kesavananda Bharati (1973)** upheld this power.

Right to Equality (Articles 14- 18)

ARTICLE 14: EQUALITY BEFORE LAW AND EQUAL PROTECTION OF LAWS

"The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."

📌 **Rule of Law**: Propounded by A.V. Dicey (British Jurist).

📌 **Article 14** is a **basic feature** of the Constitution – it **cannot be destroyed even by an amendment** (Kesavananda Bharati case).

Exceptions to Article 14:

Article 361 – *Immunity to the President and Governors*:
Article 361-A – *Immunity for proceedings in Legislatures*:
Article 105 / Article 194 – *Privileges of MPs and MLAs*:
Article 31-C – Laws made to implement **Directive Principles** under **Articles 39(b) and 39(c)** are protected from being challenged under Articles 14 and 19.
Others: Foreign sovereigns, ambassadors, diplomats, and UN agencies have immunity.

ARTICLE 15: PROHIBITION OF DISCRIMINATION ON CERTAIN GROUNDS

"The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, or place of birth."

Exceptions to Article 15: The State is permitted to make **special provisions** for:

1. **Women and Children**
2. **Socially and Educationally Backward Classes (SEBCs)**
3. **Scheduled Castes (SCs) and Scheduled Tribes (STs)**

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Article 16 – **Equality of opportunity in public employment**

No discrimination based on religion, race, caste, etc.

Allowed Exceptions:

Reservations for SCs, STs, OBCs, and EWS.

Article 17 – **Abolition of untouchability**

Practice of untouchability is a **punishable offence.**

Enforced by the **Protection of Civil Rights Act, 1955.**

Article 18 – This article states that no title other than military and academic distinction shall be conferred by the state.

Right to Freedom (Articles 19-22)



This article guarantees six fundamental freedoms to the citizens:

- Speech and Expression
- Peaceful assembly
- Forming Associations/Unions
- Free Movement throughout India
- Freedom to reside and settle in any part of India
- Freedom to practice any profession or carry on any occupation, trade, or business

Article 20 – Protection in Criminal Cases

Applies to both citizens and foreigners.

1. **No ex post facto laws** – Can't punish someone for an act that was not a crime when done.
2. **No double jeopardy** – Can't be punished twice for the same offence.
3. **No self-incrimination** – Can't be forced to testify against oneself.

ARTICLE 21 – RIGHT TO LIFE AND PERSONAL LIBERTY	ARTICLE 22 – PROTECTION AGAINST ARREST & DETENTION
No person can be deprived of life or liberty **except by due process of law.** • Interpreted to include many rights like: ○ Right to privacy ○ Right to a clean environment ○ Right to legal aid ○ Right to livelihood ○ Right to shelter **Article 21A – Right to Education** • Added by the **86th Amendment, 2002** • **Free and compulsory education** for children aged **6 to 14 years** Duty of the **State** to provide this education.	**Rights at the time of arrest:** • Must be **told the reason** for arrest • Can **consult a lawyer** • Must be **presented before a magistrate within 24 hours** • **Cannot be detained beyond 24 hours** without magistrate's approval **Note:** • These rights **do not apply** to: ○ **Enemy aliens** ○ Persons under **preventive detention laws**

Right Against Exploitation (Articles 23–24)

Article 23

- **Prohibition of Trafficking & Forced Labour**
- ❌ No trafficking in human beings.
- ❌ No begar (forced/unpaid labour).
- ⚖️ Violation is punishable by law.

Article 24

- **Prohibition of Child Labour**
- No child below 14 years can be employed: **Child Labour Amendment Act, 2016**
- Completely **bans employment** of children under 14 in **all occupations.**